

REBUTTAL TO BUILDER'S FALSE CLAIMS

BEFORE THE UTTAR PRADESH REAL ESTATE REGULATORY AUTHORITY, GAUTAM BUDDHA NAGAR- Complaint No. NCR144/10/62470/2020

To,
The Secretary,
Uttar Pradesh Real Estate Regulatory Authority (UP RERA),
H-169, Sector Gamma-2, Greater Noida, Gautam Buddha Nagar.

Subject: Rebuttal to Builder's False Claims – Complaint No. NCR144/10/62470/2020

Respected Sir/Madam,

I, Neeraj Vohra, Complainant, submit this concise rebuttal to **the false claims** made by **M/s Newtech Promoters and Developers Pvt. Ltd.** (the "Builder") in response to RERA's binding order dated **09.07.2025**, which directed the Builder to deliver possession of unit F1103 by **08.10.2025**.

I. BUILDER'S FALSE CLAIMS: LEGAL REBUTTAL

- **False Claim of Unit Cancellation:**
 - **Builder's Statement:**
 - "That in light of the complainant's continued default and non-compliance, the promoter has lawfully cancelled the allotment of the unit vide letter dated 12.06.2024."
 - **Factual & Legal Rebuttal:**
 - **No valid cancellation under RERA: Section 18(1)** mandates promoter liability for delay, not allottee liability. As held in *M/s Golden Square Realtors Pvt. Ltd. v. Satish Kumar* (UP RERA Case No. NCR123/05/54321/2022):
 - *"The promoter cannot cancel the allotment unilaterally by sending demand letters. Any such cancellation is null and void unless approved by RERA."*
 - **No Dues Certificate dated 28.05.2017** (Annexure-A) explicitly states.
 - *"This is to inform you that you have completed your outstanding amount till date against your booked flat F-1103 in La Galaxia project and not having any due amount till date."*
- **False Claim of Outstanding Dues**
 - **Builder's Statement:**

- " Reference to our repeated requests reminders... vide letter 31.01.20, 01.03.2024, 15.04.2024 and 16.05.2024 for payment of an outstanding demand of dues..."
- **Factual & Legal Rebuttal:**
 - Only one demand letter received (01.02.2024), as evidenced by my email response dated 11.02.2024.
 - "Thanks for sending demand letter, waiting since last 10 years, received letter on 01/Feb so due date can't be 31/Jan."
 - **No proof of delivery** for other alleged demands - **violates Rule 7(3) of UP RERA Rules, 2017**. which mandates service through registered post with acknowledgment due to the current address.
 - **Critical Fact:** During the relevant period (2020-2024), I was not **residing at the registered address**. The builder failed to update my contact information.
 - **No Dues Certificate (Annexure-A)** confirms no outstanding dues as of 28.05.2017, directly contradicting the builder's claim.
 - As established in *Consumer Complaint No. 347 of 2914 (S. Talwar and 2 Ors Vs. Unitech Ltd.)*
 - *Mere allegation of sending demand letters without proof of delivery cannot form the basis for cancellation of allotment under RERA."*
- **False Claim of Project Completion**
 - **Builder's Statement:**
 - "The entire scheme of the RERA is required to be kept in mind... The buildings have to be completed..."
 - **Factual & Legal Rebuttal:**
 - **Completion ≠ Possession: Under Section 2(zg) of RERA**, "possession" means **physical handover** of the unit with all necessary certificates (OC, NOCs). The builder has **not delivered physical possession** of F1103 as mandated by RERA order.
 - **UPSIC Defaulter Status (Annexure-B)** proves builder ineligible for NOC under UPSIC Regulation 12(3), directly contradicting their claim of "final stages of obtaining all necessary NOCs"
 - **UPSIC NOC Register** confirms no application filed by builder between 01.01.2025-10.10.2025.
- **CRITICAL LEGAL VIOLATIONS BY BUILDER**
 - **False Representation Before RERA:**
 - Builder falsely claimed to have "applied for NOC from UPSIC" despite being a verified defaulter (Annexure-B).

- This constitutes contempt of RERA under Section 38 (RERA has powers similar to civil court).
- **Violation of Rule 24**
 - Builder deliberately **misrepresented facts** to delay proceedings - violates Rule 24's mandate for truthful disclosure.
 - The builder's claim of "repeated demand letters" is contradicted by email evidence showing only one demand received.
- **RELIEF SOUGHT**
 - **Declaration of Invalid Cancellation:**
 - Declare alleged "cancellation" of unit F1103 null and void as it violates RERA provisions.
 - **Immediate Possession:**
 - Direct Builder to hand over physical possession of F1103
 - **Updated Recovery Certificate:**
 - Principal: ₹14,53,215.78
 - Interest @10% p.a. from 17.03.2023 to 18.10.2025: ₹3,62,579.20
 - Total: ₹18,15,794.98 (as per RERA Order dated 12.10.2021).
 - **Penalties for False Representation:**
 - ₹18.5 crores (10% of project cost) under Section 35 (Project ID: UPRERAPRJ6050, Total Cost: ₹185 crores)
 - ₹1,85,000 per day penalty from 09.10.2025 until possession is delivered (0.1% of project cost per day)
- **CONCLUSION**
 - The Builder's response contains deliberate **falsehoods** designed to circumvent RERA's binding order dated 09.07.2025. As established by documentary evidence:
 - **No valid cancellation occurred** - No Dues certificate confirms payment
 - **No outstanding dues exist** - Contradicted by builder's own documentation
 - **Project not completed** - Builder is UPSIC defaulter ineligible for NOC
 - **False NOC claim** - Proven by UPSIC records showing no application filed

Yours faithfully,

Neeraj Vohra

Complainant

Contact: 9871037773

Complaint No.: NCR144/ 10/62470/2020

Enclosures:

No Dues Certificate (28.05.2017)

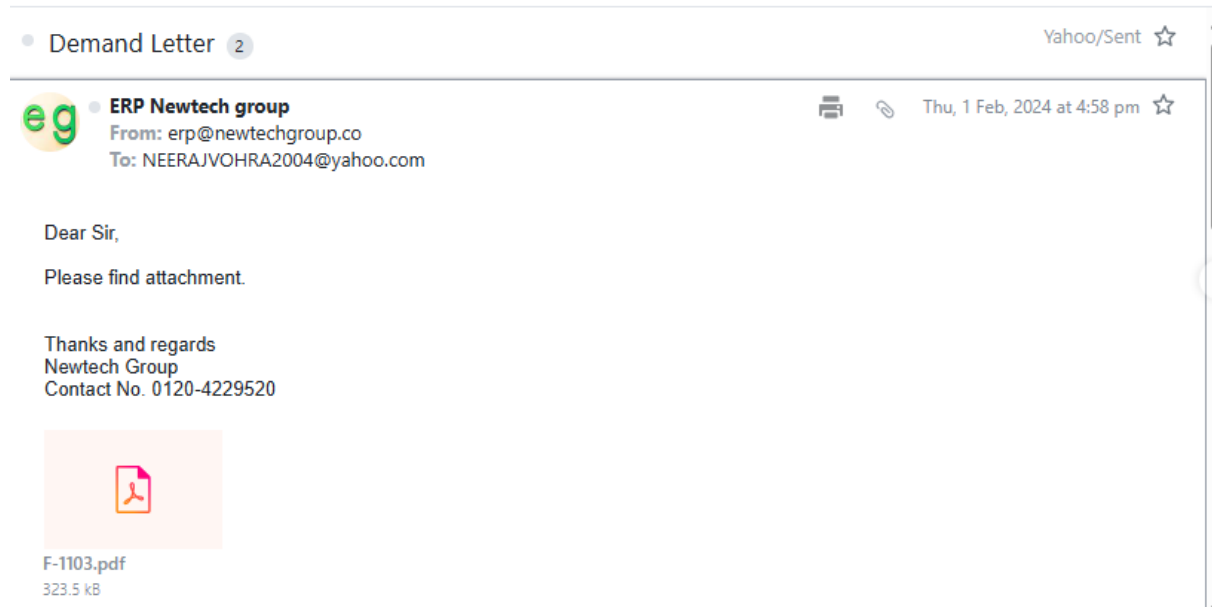
UPSIC Defaulter (Navbharat Times 30/06/2025/ Times Of India 13/05/2025)

RERA Order dated 09.07.2025

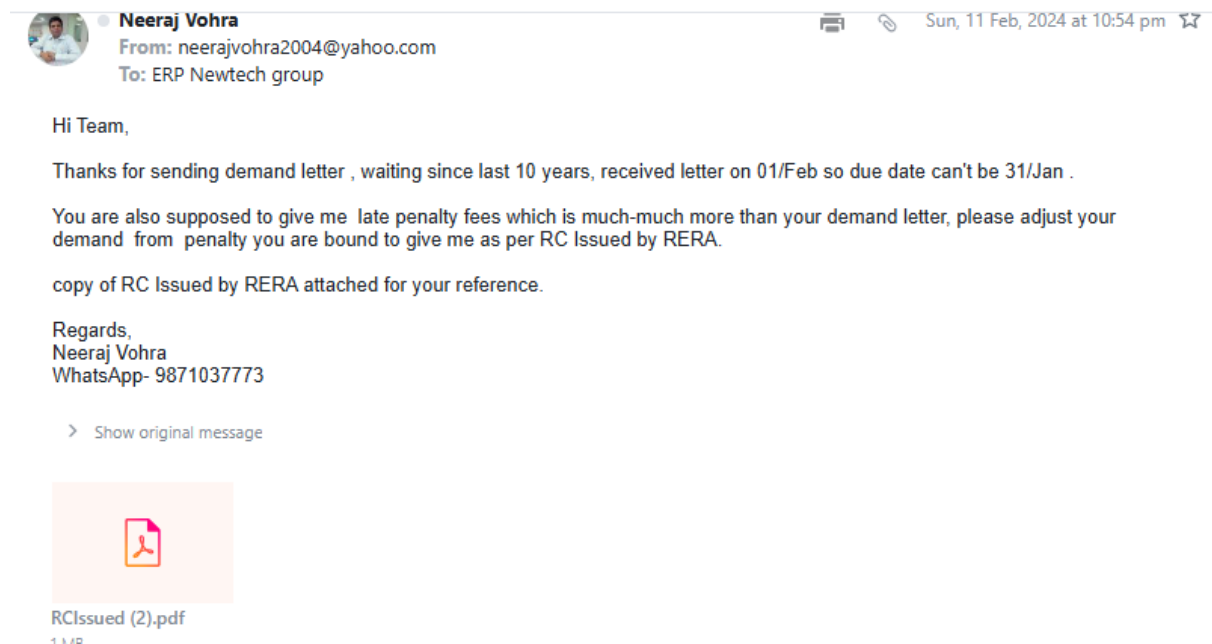
Email correspondence (01.02.2024-11.02.2024)

Email correspondence (01.02.2024-11.02.2024)

Demand Letter email : Received On 01/02/2024 (RC Issued on 17/03/2024)



Response Mail: on 11/02/2024 (ask to adjust with RC amount)



Neeraj Vohra

From: Neeraj Vohra <neerajvohra2004@yahoo.com>
Sent: 06 November 2019 14:14
To: Neeraj Vohra
Subject: Fw: Regading outstanding amount till date against your booked flat F-1103 in La Galaxia project

----- Forwarded message -----

From: "joni@newtechgroup.co" <joni@newtechgroup.co>
To: "neerajvohra2004@yahoo.com" <neerajvohra2004@yahoo.com>
Sent: Sunday, 28 May, 2017, 05:48:11 pm IST
Subject: Regading outstanding amount till date against your booked flat F-1103 in La Galaxia project

Respected Sir,

This is inform you that you have done completed your outstanding amount till date against your booked flat F-1103 in La Galaxia project and not having any due amount till date. Next demand will be raised on top floor casting.

Thanks & Regards
Joni Chauhan
Newtech La Galaxia
9650109062

UPSIC Defaulter:

Navbharat Times (30/06/2025)

नोएडा

फटाफट खबरें

ल्टर सिटी-2 के अध्यक्ष बने विशाल

पूर्वजल सिल्वर सिटी-2 सेक्टर में विकास को त्वरित करने का फैसला हुआ। बुनियादी ढांचे के विकास पर संपूर्ण ध्यान दिया जाएगा। इस बुनियादी ढांचे के विकास में अग्रणी भूमिका निभाएंगे। विकास को त्वरित करने के लिए आवश्यक सुविधाओं को निश्चित रूप से उपलब्ध कराया जाएगा। सभी निवासियों को माला प्रदान करने का फैसला किया।

में हुई नृत्य कथक वर्कशॉप

महोदय किराटिया कलाकृतियों की ओर से रचनात्मकता को बढ़ावा देने के लिए नृत्य कथक वर्कशॉप आयोजित की गई। इस कार्यक्रम में भाग लेने वाले सभी निवासियों को नृत्य कथक की महत्त्वपूर्णता के बारे में बताया गया। वर्कशॉप में निवासियों को नृत्य कथक की महत्त्वपूर्णता के बारे में बताया गया। वर्कशॉप में निवासियों को नृत्य कथक की महत्त्वपूर्णता के बारे में बताया गया।

'इनाइट' का हुआ समापन

नगर-62 निवासियों के प्रतिनिधियों ने 'इनाइट' कार्यक्रम का समापन किया। इस कार्यक्रम में निवासियों को नगर-62 के विकास के बारे में बताया गया। कार्यक्रम में निवासियों को नगर-62 के विकास के बारे में बताया गया। कार्यक्रम में निवासियों को नगर-62 के विकास के बारे में बताया गया।

कार्यक्रम का समापन

नगर-62 निवासियों के प्रतिनिधियों ने 'इनाइट' कार्यक्रम का समापन किया। इस कार्यक्रम में निवासियों को नगर-62 के विकास के बारे में बताया गया। कार्यक्रम में निवासियों को नगर-62 के विकास के बारे में बताया गया। कार्यक्रम में निवासियों को नगर-62 के विकास के बारे में बताया गया।

रुपये जमा नहीं कर रहे बिल्डर, हजारों फ्लैटों की रजिस्ट्री रुकी

सुले हुए फ्लैटों की दिखावा सील, कमिटी पर सवाल

निवासियों ने बताया कि फ्लैटों में बिल्डरों की समस्याओं को देखते हुए फ्लैटों की रजिस्ट्री रुकी है। बिल्डरों की समस्याओं को देखते हुए फ्लैटों की रजिस्ट्री रुकी है। बिल्डरों की समस्याओं को देखते हुए फ्लैटों की रजिस्ट्री रुकी है।

कई बिल्डरों के ऊपर लीजडीड का बकाया है, लेकिन 90 लाख रुपये की लीजडीड बकाया है। उधर, फ्लैटों की रजिस्ट्री रुकी है। बिल्डरों की समस्याओं को देखते हुए फ्लैटों की रजिस्ट्री रुकी है।

सूचना के अनुसार, फ्लैटों की रजिस्ट्री रुकी है। बिल्डरों की समस्याओं को देखते हुए फ्लैटों की रजिस्ट्री रुकी है। बिल्डरों की समस्याओं को देखते हुए फ्लैटों की रजिस्ट्री रुकी है।

Times Of India (13/05/2025)

8,000 flat registries in 9 Gr Noida projects stuck over Rs 400cr dues, seesaw over FAR | Noida News - Times of India

8k flat registries in 9 projects stuck over ₹400cr dues, seesaw over FAR

No Consensus In UPSIDA Over Revised FAR For 10 Years Delays Completion Certs

Aditya.Dev@timesofindia.com

Noida: Over 8,000 buyers who invested in nine group housing projects under Uttar Pradesh State Industrial Development Authority (UPSIDA) in Greater Noida continue to wait for the registration of their properties over dues exceeding Rs 400 crore, incomplete towers, legal hurdles and an impasse over Floor Area Ratio (FAR).

While land parcels for the projects were allotted between 2007 and 2011 when Greater Noida offered a 2.75 FAR, developers redrew maps and got them vetted by UPSIDA again after FAR was increased to 3.5 in 2013.

FAR is a ratio of the area on which a building can be constructed to the area of the plot. It is a measure of the density of a building. A higher FAR means a higher density of buildings on the same plot of land.

4 PROJECTS STALLED

Project	Dues	Number of Flats
Migsun Green Mansion	Nil	553 (registration process on)
E Homes	₹1.4 cr	490 (registration of 119 pending)
Shivam Homes	₹44 lakh	424 (CC pending)
La Galaxia	₹8.5 cr	525 (2 of 7 towers incomplete)
Venetia Heights	₹12 cr	485 (241 delivered)
Golf Foreste	₹91.7 cr*	3,102 (partial CC for 1,988 villas)
Ek Dant	₹24 cr	502 (construction halted, project in NCLT)
JVK Developers	₹88 cr	1,098 (no construction, project in NCLT)
Ansai Housing & Construction Ltd	₹43.3 lakh	850 planned (site vacant, no lease deed)
Divine Conbuild Pvt Ltd	₹37 cr	Not specified (12-acre plot undeveloped)

*Under award, ₹769cr total without award

crore without it. Around 2,390 families reside on-site, while the Authority has filed a writ petition challenging the arbitrator's ruling, pending before the Allahabad High Court.

Four projects remain entirely stalled. These are Ek Dant by Alpine Realtech Ltd, where 502 buyers are affected, and JVK Developers' project affecting nearly 1,100. Both projects are under NCLT.

No construction has started on a five-acre plot allotted to Ansai Housing & Construction Ltd with an FAR of 2.75, and an additional purchasable 0.75 remains. UPSIDA is considering cancelling the allotment over non-compliance. Another 12-acre plot, allotted to Divine Conbuild Pvt Ltd, remains undeveloped.

NOC not applied for F Block

